

THE CIRCUIT COURT

SOUTH EASTERN CIRCUIT

COUNTY OF WEXFORD

BETWEEN:

MICHAEL JAMES

PLAINTIFF

AND:

PETER PIPER AND DAVID PIPER

DEFENDANTS

DEFENCE

**Delivered on the 29th day of September 2004 by M/s. Fletcher Keenan,
Solicitors, Shergar Street, Wexford, Solicitors for the Defendants**

1. The accident alleged is denied as if each and every particular of the narrative description thereof was set forth herein and traversed seriatim.
2. If any accident did occur (a fact which is denied) then it is denied that it occurred by reason of the negligence and breach of duty (including statutory duty) on the part of the Defendant, its servants and/or agents.
3. Each and every particular of negligence and breach of duty (including statutory duty) is denied as if set forth herein and traversed seriatim.
4. The injuries, loss, damage and expense are denied as if each were set forth herein and traversed seriatim.
5. If the Plaintiff did sustain the alleged or any severe personal injury, loss, damage and expense (all of which are denied) then same were caused solely or in the alternative contributed to by reason of the Plaintiff's own negligence and breach of duty (including statutory duty):

PARTICULARS

- a. Driving in a manner which was dangerous/careless in all the circumstances.

- b. Driving without reasonable consideration;
- c. Failing to keep a proper look out;
- d. Driving at an excessive speed;
- e. Driving unto his incorrect side of the road;
- f. Failing to have any or any adequate regard for the road and weather conditions which prevailed at the time of the accident;
- g. Failing to stop, steer, swerve, slow down, apply his brakes in time or at all or so manage his vehicle so as to avoid the accident complained of;
- h. Driving in breach of the Road Traffic Acts and the Regulations and Bye Laws made thereunder insofar as they correspond with the particulars of negligence herein pleaded;
- i. Such further and other matters as may be pleaded or as may adduced in evidence at the trial of action.

6. The Plaintiff is not entitled to the reliefs claimed or any relief.

Jeremy Taaffe

Dated the 29th day of September 2004



Fletcher Keenan & Co
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To. Moriarty & Partners
Solicitors
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